

Smt. Chanda v. U.P. Power Corporation Ltd.

Allahabad High Court (Lucknow Bench) · Division Bench · 9 September 2025 · WRIT-C No. 8669 of 2025 · **Writ disposed of; petitioner to apply under 4.4(a)(i); licensee to process and pass order after inspection.**

HEADNOTE

Mandamus for a 2 kW domestic connection at tenanted premises was not granted. The petitioner was left to apply under clause 4.4(a)(i) of the U.P. Electricity Supply Code, 2005 (cited as 4.4(a)(1)) with the prescribed occupancy documents; the licensee must process the application and pass an appropriate order after inspection.

FACTUAL SUMMARY

The petitioner, a tenant at 149/137, Hari Nagar, Dugawan, Dugawan Chowki, P.S. Naka, Rajendra Nagar, Lucknow, sought mandamus directing U.P. Power Corporation Ltd. to grant and sanction a 2 kilowatt domestic electric connection at the tenanted premises. Counsel for the respondents placed clause 4.4(a) of the Electricity Supply Code, which requires a complete prescribed-form application accompanied by proof of ownership or occupancy—registered sale or partition deed, succession papers, rent receipt, lease deed, or indemnity as per Annexure 4.2.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(a)(i)

processing of application for new supply — occupancy documents

HOLDING

The Court did not direct grant of the 2 kW connection. Liberty was given to apply in the prescribed form under clause 4.4(a)(i) within two weeks, with the documents listed in that clause (proof of ownership or occupancy, including rent receipt, lease, or indemnity in Annexure 4.2). The licensee shall process the application and pass an appropriate order after inspection of the formalities within two weeks thereafter. ¶ 1

FLAG Court cites '4.4 (a) (1)'; Code numbering is 4.4(a)(i).